HH 98-26
HCHC110/25

SIMBARASHE GERALD MASHIRI

Versus

CORRECT DUBE t/a BRIGHT MINING SYNDICATE

HIGH COURT OF ZIMBABWE
COMMERCIAL DIVISION
CHILIMBE
HARARE 18 June 2025 & 5 February 2026

Application for leave to appeal

T. Nyahuma for the applicant
S. Bhebhe for the respondent

CHILIMBE J

BACKGROUND

[1] This is an application for leave to appeal in terms of s 43 (2) (d) of the High Court Act [Chapter 7:06] ("the High Court Act") as read with the applicable rules of court[1]. The applicant protests against the decision of this court per my brother MANZUNZU J in judgment number HH 79-25.

[2] The court dismissed, in that judgment, applicant`s preliminary point challenging respondent's locus standi to institute proceedings in case number HCHC 149/23. I set out briefly hereunder, the dispute between the parties in the main matter.

GENESIS OF THE DISPUTE: THE ALLEGED THEFT OF GOLD BULLION PROCEEDS

[3] The respondent (as plaintiff) issued summons in HCHC 149/23 claiming the sum of US$60,500.00 being the value of gold bullion proceeds allegedly unlawfully converted by the

[1]Section 43 (2) (d) is morefully discussed later in the judgment. Rule 95 of the High Court Rules SI 202 of 2021 ("the High Court Rules") as read with rule 4 (2) and rule 43 (1) of the High Court (Commercial Division) Rules SI 123 of 2020 ("the Commercial Court Rules").

defendant to his own use. The applicant (as defendant) disputed the claim, defended it and raised a point in limine.

THE POINT IN LIMINE

[4] The court summarised the point *in limine* as follows in HH 79-25; -

> "The only issue which stands for determination for now is whether the plaintiff is a legal persona and whether the plaintiff has *locus standi* in *judicio*. The plaintiff sued the defendant seeking recovery of US$60 500 being the sale proceeds of gold bullion. The defendant has denied liability and also challenged the plaintiff's legal persona and *locus standi."*

[5] In dealing with the point, the court retraced the historical background to the dispute. It noted that in 2011, the late Sainet Mashiri-applicant`s father-partnered Mr Correct Dube as "Bright Mining Syndicate" in a mining venture in Mashonaland West province of Zimbabwe. Mr Sainet Mashiri died in 2016. The court made a specific finding that at law, Bright Mining Syndicate ceased to exist as a legal entity with the death of Mr Mashiri senior.

[6] The court further opined that although Bright Mining Syndicate lost its legal status thus, Mr Correct Dube continued to trade or operate under that name. There was nothing to stop Mr Correct Dube from running his mining business under the style of Bright Mining Syndicate, the court observed.

[7] Against these views, the court turned to the arguments raised in the point in limine by herein applicant; - namely that the "conjoined" appellation "Correct Dube trading as Bright Mining Syndicate" was a legal impossibility. This argument did not find favour with the court. Firstly, it was its finding that Mr Correct Dube was within his rights to institute the proceedings in HCHC 149/23 as "Correct Dube trading as Bright Mining Syndicate".

[8] In the same vein, the court took the view that the protest raised in the point *in limine* devolved to a mere issue of citation. As noted, the court saw no impediment to Mr Correct Dube`s election to use the trading name in his suit. Secondly, the court concluded that Mr

Correct Dube had demonstrated real and substantial interest sufficient to found locus standi in the matter.

[9] The court relied-in coming to the above conclusions- on decisions such as *Makarudze & Anor* v *Bungu & Ors* 2015 (1) ZLR 15 (H), *Sibanda and Others v Apostolic Faith Mission,* SC 49-18, *United Watch & Diamond Company (Pty) Ltd & Ors* v *Disa Hotels Ltd & Anor* 1972 (4) SA 409 (c) at 415 A-C and *Matambanadzo* v *Goven* SC 23/04

THE RIGHT OF APPEAL AND LIMITATIONS THERETO

[10] The right to appeal is a fundamental entitlement in our law. There is ample authority asserting this sacrosanct principle. (See CFI *Retail (Pvt) Ltd v Eric Masese Nyika* SC 8-16 *Zimbabwe Mining Development Corporation & Anor v African Consolidated Resources PLOC* SC 1-10. But this right must be read against the reality that our law relies heavily on the handy options to speedily dispose of matters through interlocutory interventions.

[11] Rulings on these convenient alternatives to full trials or hearings however can generate protests in the form of appeals. As such, for pragmatism and rationality, the law limits the right of appeal on interlocutory rulings. MAFUSIRE J (as he then was) dealt with this point to some considerable degree in *Gappah v Mahere* HH 633-22. In the relevant part, s 43 of the High Court Act stipulates that; -

> **43 Right of appeal from High Court in civil cases**
> (1) Subject to this section, an appeal in any civil case shall lie to the Supreme Court from any judgment of the High Court, whether in the exercise of its original or its appellate jurisdiction.
> (2) No appeal shall lie—
> (*a*) from an order allowing an extension of time for appealing from a judgment;
> (*b*) from an order of a judge of the High Court in which he refuses an application for summary judgment and gives unconditional leave to defend an action;
> (*c*) from—
> (i) an order of the High Court or any judge thereof made with the consent of the parties; or
> (ii) an order as to costs only which by law is left to the discretion of the court, without the leave of the High Court or of the judge who made the order or, if that has been refused, without the leave of a judge of the Supreme Court;
> (*d*) from an interlocutory order or interlocutory judgment made or given by a judge of the High Court, without the leave of that judge or, if that has been refused, without the leave of a judge of the Supreme Court……

[12] Before dealing with the test itself in detail, I set out the draft grounds of appeal. These largely influenced the arguments raised on behalf of applicant in support of the application for leave to appeal. The two (2) draft grounds of appeal went thus: -

1. "The court a quo erred in concluding that post termination of a partnership, a former member can, in asserting a claim predicated on the rights of the partnership sue in his name conjoined with that of the partnership as a trade name.
2. The court a quo erred in coming to the conclusion that respondent established a nexus between his cause of action and relief sought as to constitute standing to institute the proceedings"

[13] I may for now, merely comment that the above grounds reflect a perceptible shift from the point in limine as expressed by the court in its judgment. The applicant`s plea in the main matter, contested the respondent`s claim to the value of bullion allegedly misappropriated. The grounds of appeal appear to have returned to the core argument. I will return to the grounds shortly. Meanwhile, I address the test to apply in applications for leave to appeal.

THE TEST FOR LEAVE TO APPEAL IN S v TENGENDE

[14] The applicant cited *S v McGown* 1995 (2) ZLR 81 (S), *S v Mutasa* 1988 (2) ZLR 4 and the famous passage in *S v Tengende & Ors* 1981 ZLR 445 where the applicable standard was described as follows; -

> "I prefer therefore to approach the matter by considering, not how good the prospects must be before leave is granted, but how poor they must be before leave is refused. And for these reasons I think the test has been mooted-that the applicant must show reasonable prospects of success-puts the matter too high, in my view leave to appeal should be granted if the applicant makes out a reasonably arguable case".

[15] I must state that the proposition of law stated in *S v Tengende* sounds singularly attractive and quite inspiring. But I must also sound the reminder firstly, that *S v Tengende* dealt with the liberty of an incarcerated applicant. Whilst the considerations for leave to appeal are universal, regard must be had to that fact and distinctions between *Tengende* and

other authorities dealing more pointedly with civil disputes. See *Pichanick NO v Paterson* 1993 (2) ZLR 163 (H), *Chikafu v Dodhill* (Pvt) Ltd & Ors 2009 (1) ZLR 293 (S) *F.M. Katsande and Partners & Anor v Mydal International Marketing* HH 225-17 and stated more recently in *Gappah v Mahere* (supra) where the test was restated in the following terms at *[20];* -

i. that there are reasonable prospects of success;
ii. that the balance of convenience favours the grant of such leave;
iii. that the matter is of substantial importance to one or both parties;
iv. that there is a point of law, or divergence of authorities on it that will be settled by the appeal court;
v. for a judgment sounding in money, that the amount in dispute is not trifling

[16] The above test addresses the matters central to the present dispute. Secondly, even the most fleeting perusal of *S v Mutasa* (supra) will reveal that the Supreme Court expressly declined to follow the test in *S v Tengende*. In doing so, DUMBUTSHENA CJ distinguished between a merely arguable case and one which enjoyed prospects of success on appeal and held as follows at pages 7-8; -

> "In this case it would be wrong to follow the approach advocated by Baron JA in *S v Tengende & Ors* 1981 ZLR 445 at 447 A-B, where the learned Judge of Appeal stated: "I prefer therefore to approach the matter by considering, not how good the prospects must be before leave is granted, but how poor they must be before leave is refused. And for this reason, I think the test that has been mooted — that the applicant must show reasonable prospects of success — puts the matter too high; in my view leave to appeal should be granted if the applicant makes out a reasonably arguable case." To adopt that approach in an application such as the present would be wrong. There are some appeals with no prospects of success which are arguable."[2] [Underlined for emphasis]

[17] With those remarks, I return to the arguments moved on behalf of applicant by Mr. *Nyahuma* in the heads of argument. Counsel contended that the court had committed a fundamental misdirection by failing to recognise that respondent could not competently assert

[2] See also *Mazivisa v The State* HMA 16-11

rights drawn from a non-existent syndicate. The interest claimed by respondent was neither personal to him nor capable of "individuation" as defined in Lawrence Baxter-Administrative Law[3] at page 655.

[18] The next argument was that the court did not address itself sufficiently to the legal authorities placed before it. Mr *Nyahuma* cited *Gwaradzimba v C.J. Petron and Company (Pty) Ltd* SC 12-16 in support and referred to GARWE JA (as he then was) `s remarks at [20]; -

> "The position is well settled that a court must not make a determination on only one of the issues raised by the parties and say nothing about other equally important issues raised, "unless the issue so determined can put the whole matter to rest" – *Longman Zimbabwe (Pvt) Limited v Midzi* & *Ors* 2008 (1) ZLR 198, 203 D (S)"

[19] Mr *Bhebhe* for the respondent submitted as follows in opposition; -the application was ill-conceived. The court had correctly found that Mr Correct Dube was properly placed to bring the suit under the appellation selected. The question before the court was about the identity of a party and its interest in the matter before the court. Mr Correct Dube was the individual or party before the court. The reference to the expired syndicate in the citation did not change the identity of the actual party moving the suit.

[20] Counsel cited *Masuku v Delta Beverages* 2012 (2) ZLR 112 (H) and *Chigora & Ors V Freda Rebecca Gold Mine Holdings* HH 148-18 in support. Further, Mr. *Bhebhe* disputed his colleague`s contentions that the court neglected to consider authorities placed before it. Effectively dismissing that argument as impudent, Mr *Bhebhe* averred that no specific legal issues, authorities nor principles had been pointed out by applicant`s counsel in support of that accusation.

[21] In that regard, the envisaged appeal had no prospects of appeal, averred Mr *Bhebhe.* Counsel also described the entire application as an insincere "fishing expedition" and desperate attempt to block respondent from accessing relief from the courts. He made

[3] Juta, 1984.

reference what he termed a series of adjectival breaches and derelictions which supported the conclusion that applicant was on a mischievous quest.

[22] According to Mr *Bhebhe,* not only were these aberrations most extreme. They were, continued Mr *Bhebhe,* spiritedly championed by non-other Mr *Nyahuma,* an officer of this court and applicant`s legal practitioner of record. As such, Mr *Bhebhe* moved the court to levy admonitory costs *de bonis propriis* against counsel for applicant. I will apply the test in *Gappah v Mahere*, but not necessarily *in seriatim*.

ANALYSIS OF THE ARGUMENTS

that there are reasonable prospects of success;

[23] Mr *Nyahuma* argued that the applicant enjoyed great prospects of success on appeal. In considering this argument, I recognise that an appeal is a specific complaint targeting a court or tribunal`s ruling (see *Chidyausiku v Nyakabambo* 1987 (2) ZLR 119 (S), as read with *Econet Wireless (Pvt) Ltd v Trustco Mobile (Pty) Ltd & Anor* SC 43-13). Herein, the starting point is the point *in limine* as framed in paragraph [4] of this judgment.

[24] It is this point which occupied the court and generated the judgment in HH 79-25. The court found that whichever way one viewed the matter, what stood before it was a litigant who had styled himself as trading under the syndicate`s name. However, the grounds of appeal and resultant arguments, as noted above, shifted in focus, from the point *in limine* referred to.

[25] Grounds number 2 in particular, delved into contestations of rights in the property in issue-the bullion proceeds. These issues formed the core arguments on the merits. This wavering in focus blurs the applicant`s framing of the prospects. The simple issue was whether an individual can sue in his name and add the "trading as" phraseology. The point *in limine* was not concerned with the rights of a defunct syndicate. The court adequately addressed this issue and I perceive no prospect in the applicant offsetting that conclusion.

[26] On the alleged failure by the court to deal with matters placed before it, I observe that (a) the point was not backed by further detail to allow an examination of the issue, (b) it was not flagged as a ground of appeal and (c) relied on an authority (*Gwaradzimba v Petron)* which coincidentally supported the court.

[27] And lastly as (d), one must have regard to the fact that the point *in limine* commenced life as an exception. However, it was not, for some reason, argued and concluded as such but as a point of law raised *in limine*. I am not persuaded that the attack on the court`s treatment of the matter before it takes the applicant's prospects of success any further.

that there is a point of law, or divergence of authorities on it that will be settled by the appeal court

[28] To confirm the fact that the court was faced with a simple matter of party-citation, I note that in paragraph 12 of his founding affidavit, applicant stated that the matter raised a novel legal issue which required the Supreme Court`s attention. This point was however, not pursued in argument. Perhaps rightfully so because the point in limine raised a routine disputation over the citation of a party. There is a plethora of authorities dealing with such matters across a wide spectrum of scenarios. This observation concomitantly dispenses with point (iv) in paragraph [15] above.

that the balance of convenience favours the grant of such leave (plus points (iii) and (v) in paragraph [15]

[29] From the submissions, I drew no indication that the pragmatic dictates of justice would be served well by granting leave to appeal. If anything, there were ardent suggestions that the present proceedings were hampering the conclusion of the main matter. So strong were such views that they came laced with a prayer for punitive costs to the account of applicant's counsel. Indeed, the matter may be of importance to the parties and amount involved not trifling, but nothing turns on those aspects.

DISPOSITION

[30] The application for leave to appeal cannot succeed. Similarly, I am not inclined to grant an order of punitive costs and against counsel for the following reasons; -firstly, such costs are only reserved for the worst of offenders against the legal practitioner`s standard.

[31] Herein, the accusations raised were fiercely refuted. The record cannot independently verify the defences tendered. And I do not find it necessary, desirable nor profitable to tarry any further by delving into a full inquiry to ascertain beyond issue, the veracity of allegations of impropriety raised.

Accordingly, it is hereby ordered that; -

1. The application for leave to appeal the decision of this court in HH 79-25, be and is hereby dismissed with costs.

*Nyahuma`s Law*- applicant`s legal practitioners
Kantor & Immerman-respondent`s legal practitioners

[CHILIMBE J___5/2/26]